AUSTINA MOYO

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 9 April 2026

Application for bail pending appeal

T. Mbwachena for the applicant
Ms. M. Mutumhe for the respondent

DUBE-BANDA J

[1] This is a bail application pending appeal against both conviction and sentence. After hearing submissions from Mr *Mbwachena,* counsel for the applicant, I dismissed the application. The applicant has requested written reasons for the dismissal of her application; this judgment provides such reasons.

[2] The applicant stood charged with two counts. In count 1, she was charged with the crime of unlawful dealing in dangerous drugs as defined in s 156(1)(c) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The State alleged that on 24 January 2026, the applicant unlawfully possessed four plastic bags of prepared dagga, a dangerous drug weighing 6,438kg, for the purposes of dealing in such drug. In count 2, she was charged with the crime of contravening s 38(1) as read with s 38(2) of the Medicines and Allied Substances Control Act [*Chapter 15:03*] as read with the 9th and 10th Schedule of SI 150/1991. It is alleged that she unlawfully possessed 50 x 100 milliliter bottles of Broncleer Cough Syrup, which contains Codeine Phosphate 10mg/5mls, which is above the regulated 5 mg/5mls in liquid form, Diphenhydramine HCL 12.5mg/5mls, Ammonium Chloride 125mg/5mls and Sodium Citrate 50mg/5mls which are not registered by the regulating authority.

[3] After a contested trial, she was convicted on both counts. In count 1, she was sentenced to 24 months imprisonment, and in count 2, she was sentenced to 6 months imprisonment.

Aggrieved by both the conviction and sentence, the applicant noted an appeal to this court. The appeal is pending under the cover of case number HCMSCR471/26.

[4] It is trite law that noting an appeal does not automatically suspend the execution of the sentence imposed following the conviction, and neither is it a ground to justify the release of a sentenced accused on bail pending appeal − unless a court thinks it fit to order that the accused be released on bail. This requires a sentenced accused to apply for bail and to place the necessary facts before the court that would allow it to exercise a discretion in his or her favour to grant bail. There are different considerations that arise in granting bail after conviction and sentence from those relevant to granting bail pending trial. At the heart of a decision on the issue of bail pending appeal lies two relevant factors that are interconnected, and they are: **(a)** the prospects of success on appeal; and **(b)** the increased risk and likelihood of abscondment once a person has been sentenced to a term of imprisonment.

[5] It is important to note that the focus in this bail application was predominantly on the criticism levelled against the trial court that the State did not prove its case beyond a reasonable doubt, in that the chain of custody of the exhibits was not proved. In fact, Mr *Mbwachena* counsel for the applicant submitted that of the three grounds of appeal captured in the notice of appeal, this application was only predicated on the following ground:

> "That the court *a quo erred* and misdirected itself in both terms of the law and fact by failing to appreciate that the State failed to prove that the chain of custody of exhibits did not remain intact from the time of arrest up to the time when exhibits were referred to the Forensic Science laboratory for examination."

[6] In examining whether, on the facts of this case, this ground of appeal has prospects of success, it is important to start with the basic and elementary principles of law. Dagga is real evidence or real exhibit. The admissibility requirement to produce real evidence is that it must be relevant. In respect of dagga and drugs in general, relevancy is established by proving the chain of custody or the integrity of the exhibit. See *Ndlovu* v *The State* HB-240-23.

[7] Generally, there are two methods of producing real evidence at a trial: the first is with the consent of the accused, and the second is by order of the court. If there is no objection to the production of an exhibit, the prosecution is relieved of proving the admissibility requirements. In other words, the admissibility of the exhibit will not be in dispute, and the court receives the

exhibit by consent. Therefore, when the defence, in answer to an application by the prosecution to produce an exhibit, informs the court that it has no objection to its production, in essence, it says that the exhibit is admissible. In such a case, there will be no need to prove the chain of custody of the exhibit. In *S* v *Matshaba* 2016 (2) SACR 651 (NWM), the court held as follows:

> "The importance of proving the chain of evidence is to indicate the absence of alteration or substitution of evidence. If no admissions are made by the defence, the State bears the onus to prove the chain of evidence. The State must establish the name of each person who handles the evidence, the date on which it was handled, and the duration. Failure to establish the chain of evidence affects the integrity of such evidence and thus renders it inadmissible". (My emphasis).

[8] Therefore, in a case where an exhibit is received by consent, the prosecution need not prove the admissibility requirements. However, the prosecution may, in terms of s 278(1) of the Criminal Procedure and Evidence Act [*Chapter 9:07*], preceding the consent or subsequent to it, produce documentary evidence as proof of the chain of custody of the exhibit. Such production will not detract from the fact that the exhibit would have been admitted by consent.

[9] In *casu*, the applicant had the benefit of legal representation at the trial, and the contraband was produced with her consent. In respect of the dagga, the following exchange took place:

> The prosecutor:
> I believe I can now tender in the record the dagga, and if there are no objections, may it be marked exhibit 6.
> Defence counsel:
> No objections.

[10] It does not appear that the prosecution had any obligation to prove the chain of custody of the contraband., because the applicant consented to the production of the dagga as an exhibit. With this in mind, it becomes difficult to find in favour of the applicant and conclude that she has reasonable prospects of success on appeal on the grounds that the State did not prove the chain of custody of the exhibits. In any event, and for completeness, I do not believe that the applicant has prospects of success in respect of her other contentions that the trial court *erred* by failing to uphold her *alibi* defence, and that at some point her husband was in charge of the house where the contraband was recovered. In addition, the appeal against the sentence does

not appear to have prospects of success. This is so because ordinarily, sentencing is within the discretion of the trial court. A court of appeal will only interfere with the sentence imposed by the trial court if it is vitiated by an irregularity, or misdirection, or when the sentence is shockingly severe, disturbingly inappropriate, and totally out of proportion to the offence committed. The view I take is that the quantities of contraband involved warranted direct imprisonment.

[11] As stated above, the prospects of success on appeal and the possibility of abscondment are interrelated. The less likely the prospects of success, the more the inducement there is for the applicant to abscond. In the circumstances, there is a real likelihood that the applicant will be tempted to abscond and not wait to serve, in the event her appeal fails, the prison term. The fact that she has been convicted and has already experienced incarceration, and is fully aware of the sentence imposed, affords abundant incentive for her to abscond. There is, therefore, a high probability that she will abscond if she is released on bail pending appeal. In the circumstances, the applicant is a flight risk.

[12] In conclusion, I take the view that the applicant did not discharge the *onus* of showing that it would be in the interests of justice to release her on bail at this stage. In *State* v *Tengende & Ors* 1987 ZLR 445, the court held that the proper approach in applications for bail pending appeal is that, in the absence of positive grounds for granting bail, it will be refused. The applicant has not provided any positive grounds for allowing her to be released on bail. In my view, the prospect of a prison term, coupled with her fresh experience of post-trial incarceration, affords abundant incentive for her to abscond. It is for these reasons that I dismissed this application for bail pending appeal.

Ruvengo Maboke and Company, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners